

SPR-097345 Estate of Donald A. Wiedmann

County: sonoma

Division: Probate

Hearing date: 2026-08-28

Motion: Motion

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Estate of Donald A. Wiedmann

SPR-097345

Motion

Tentative Ruling: APPEARANCES REQUIRED for status of case and possible trial setting on the Petition for Fiduciary Accounting; for Surcharge of Beneficial Interest for Breach of Fiduciary Duty; and Imposition of Constructive Trust, filed March 16, 2026. The Court is inclined to grant that part of the petition that seeks an accounting from the former administrator and order her to account from the date of filing of the petition for probate on February 2, 2023 until the date of her removal. The Court would require production of the accounting well prior to any trial date set. If respondent contends such an order first requires resolution of disputed material facts, she should be prepared to make an offer of proof at the hearing which such facts require an evidentiary hearing.

The Court also notes that the parties were ordered to file statements of issues in compliance with the local rule if the matter was not fully resolved. The Court is in receipt of a statement of issues from petitioner Richard Wiedmann that indicates the matter has not resolved. No statement of issues has been filed by respondent Kelly Wiedmann. Counsel for respondent should be prepared to offer an explanation for failure to comply with the Court's order.